MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This Memorandum of Agreement, hereinafter referred to as MOA, made and entered into this _____ day of _____ _____ in _____, _____ by and between:

COMMISSION ON HUMAN RIGHTS (CHR), a constitutional office of the Republic of the with office of the Republic of the Philippines with the office address at the SAAC Building, UP Complex, Commonwealth Avenue, Diliman, Quezon City, represented herein by **ATTY. RICHARD P. PALPAL-LATOC** in his capacity as Chairperson hereinafter referred to as **"CHR"**;

-and

CITY GOVERNMENT OF CAGAYAN DE ORO, a government agency created and organized under existing laws, with principal address at 89 Hayes St., CAGAYAN DE ORO CITY, 9000, Misamis Oriental represented herein by its Honorable Mayor, **ROLANDO "KLAREX" UY,** hereinafter referred to as **"LGU-CDO."**

WITNESSETH: That

WHEREAS, the State values the dignity of every human person and guarantees fully respect for human rights and mandates that all educational institutions shall inculcate patriotism and nationalism foster respect for human rights, appreciation of the role of national heroes in the historical development of the country, and teach the rights and duties of citizenship:

WHEREAS, under the UN Declaration on Human Rights Education and Training as well as the World Programme for Human Rights Education, State institutions have the obligation to undertake a continuing program of human rights education and training to mold the Filipino psyche along respect for and protection of all human rights;

WHEREAS, **CHR** is an independent constitutional body mandated to establish a continuing program of research, education, and information to enhance respect for the primacy of human rights, and in pursuance of this function, and, for that purpose, may coordinate and request the assistance of any department, bureau, or agency;

WHEREAS, LGU-CDO has a higher education institution called the **CITY COLLEGE OF CAGAYAN DE ORO (CCCDO)** existing under and by virtue of the laws of the Philippines, with principal address at Zone 2, Barangay Agusan, Cagayan de Oro City;

WHEREAS, **CITY COLLEGE OF CAGAYAN DE ORO** will be the primary institution to provide education and training to the identified faculty, staff, and students, to obtain greater opportunity in upholding human dignity, and thereby improve their welfare and guarantee and safeguard human rights.

WHEREAS, **CHR** encourages all State Universities and Colleges and private Higher Education Institutions to establish their Centers for Human Rights Education as their main mechanisms in helping accelerate the building of a culture of human rights in the academic communities and in their geographic areas of jurisdiction where they operate;

NOW, THEREFORE, in consideration of the foregoing premises, the parties hereby agree as follows:

ARTICLE I
PURPOSE AND SCOPE

Section 1. The purpose of this MOA is to set forth the terms and conditions, scope of work and responsibilities of the parties associated with their collaboration on the establishment, development, strengthening, and continuous operationalization of a Center for Human Rights Education (CHRE).

Both parties see the benefits of this project, have a desire to pursue the project and have determined that each brings unique expertise and experience necessary to accomplish the objectives outlined above.

CHR has unique expertise and experience in the following areas: (1) human rights education and training, and (2) provision of preventive measures and legal aid services to the underprivileged whose human rights have been violated or need.

LGU-CDO has unique expertise and experience in the following areas: instruction, curriculum, research, and community engagements.

ARTICLE II
GENERAL PROVISIONS

Section 1. The PARTIES, through their respective representatives designated herein, shall be the partners under this MOA.

Section 2. This partnership mainly aims to build a culture of human rights by establishing, developing, strengthening, and continuously operating the Center for Human Rights Education, herein referred to as CHRE, at the City College of Cagayan de Oro to undertake human rights education activities, involving its faculty, staff, and students as may be applicable within its campus and with its partners and clienteles through instruction, research, and community extension activities.

Section 3. This partnership further aims to develop the CHRE as a social laboratory for human rights education innovations and in building a culture of human rights in various community settings.

Section 4. The PARTIES acknowledge that **CHR** is the National Human Rights Institution (NHRI) created under the 1987 Constitution exercising jurisdiction over the entire Philippines accredited by the Global Alliance of National Human Rights Institution (GANHRI) as Status "A."

Section 5. Each party takes legal and financial responsibility for the actions of its respective employees, officers, agents, representatives, and volunteers. Each party agrees to indemnify, defend and hold harmless the other to the fullest extent permitted by law from and against any and all demands, claims, actions, liabilities, losses, damages, and costs, including reasonable attorney's fees, arising out of or resulting from the indemnifying party's acts or omissions related to its participation under this MOA and each party shall bear the proportionate cost of any damages attributable to the fault of such party, its officers, agents, employees, and independent contractors. It is the intention of the parties that, where fault is determined to have been contributory, principles of comparative fault will be applied.

Each party, at its sole cost and expense, shall carry insurance or self-insure

to covers its activities in connection with this MOA, and obtain, keep in force and maintain, insurance, or equivalent programs of self-insurance, for general liability, workers compensation and business automobile liability adequate to cover its potential liabilities.

ARTICLE III
SPECIFIC AREA OF RESPONSIBILITY

Section 1. LGU-CDO shall, through the City College of Cagayan de Oro shall: 1. Establish a CHRE located within the campus and accessible by clienteles through an appropriate office address;

2. Designate a Center Director or Coordinator to manage the CHRE, assisted by a secretariat;
3. Identify individual persons for capacity building as human rights educators;
4. Launch the CHRE to make known to the general public and its clienteles and provide support to its programs, projects, and activities;
5. Deigned the CHRE, which shall perform the following functions:

Instruction:

a. Take leadership in receiving the HEI's curricula and courses for the purpose of mainstreaming human rights concepts and principles, and integrate human rights concepts and participation as curricula;
b. Organize a core of human rights educators as volunteers of the Center and human rights educators training and accreditation with the regional office;
c. Conduct human rights education activities for its students, faculty, staff, and community clienteles on its own or in partnership with the CHR regional office and other relevant multi-stakeholder partners;
d. Develop curricula and instructional materials for formal, non-formal, and/or alternative delivery systems of education for human rights; and,
e. Develop information, education, and communication (IEC) materials on human rights.

Research

a. Conduct research and special studies to enhance human rights education programs; and
b. Publish research and share reports with the CHR Regional Office to assist in the effective monitoring and evaluation of the state actors' compliance with obligations in international treaties on human rights;

Extension

a. Assist in the establishment and capacity-building of Barangay Human Rights Action Centers (BHRACs) within its jurisdiction; and b. Develop programs and activities that address the needs and concerns of vulnerable sectors in the community they operate.

Section 2. CHR shall:

Develop information education and communication (IEC) materials and standard training modules on human rights, access to justice and rule of law that can be used, reproduced and/or disseminated by **LGU-CDO**:

a. Provide technical support in the development and implementation of the human rights programs, projects, and activities of LGU-CDO;
b. Assist in the establishment and operationalization of the CHRE and the

capacity-building of its staff and volunteers as well as faculty and student organizations;

c. Jointly organize the capacity-building activities for its multi-stakeholder partners such as, but not limited to, educators and civil society organizations;
d. Provide technical support to the LGU-CDO in helping the CHR establish and capacitate HRACs within its jurisdiction;
e. Provide and share with the LGU-CDO modules, together with all learning resources included in the modules, and other materials on Human Rights Education, if so requested, or access thereto; and
f. Jointly organize with the LGU-CDO capacity-building activities for its multi-stakeholder partners, such as but not limited to, human rights action teams, and civil society organizations.

Section 3. The PARTIES shall each be solely responsible for any and all costs associated with their responsibilities under this MOA.

Section 4. **LGU-CDO**, even after lapse of this MOA, shall not perform any act that will be inimical or cause any adverse effect to CHR, in particular, but not limited to, the FIRST PARTY's status as the NHRI of the Philippines, its mandate, powers, jurisdiction, or its accreditation with the GANHRI as Status "A".

Section 5. The PARTIES agree that any intellectual property, which is jointly developed through activities covered under this MOA, can be used by either party for non-commercial human rights education and promotion purposes without obtaining consent from the other, unless later modified in writing.

All other intellectual property used in the implementation of the MOA will remain the property of the party that provided it. This property can be used by either party for purposes covered by the MOA but consent will be obtained from the owner of the property before using it for purposes not covered by the MOA.

ARTICLE IV
MONITORING REQUIREMENT

Section 1. **CHR** shall be responsible for monitoring and evaluation, and for organizing quarterly or semestral meetings, or as the need may arise, to provide technical assistance and for monitoring and evaluation purposes.

Section 2. **LGU-CDO** shall submit quarterly reports to the concerned CHR Regional Office to ensure compliance with the stated areas of responsibility covered under this MOA.

The quarterly reports shall be submitted following CHRE reporting templates which shall be provided by the **CHR**.

ARTICLE V
DISPUTE RESOLUTION

Section 1. All disputes, controversies, or claims arising out of or relating to this MOA shall first be mutually resolved.

Provided, further, that parties hereby agree to resolve a dispute through informal discussions or settle any issue amicably before exercising the right to terminate.

ARTICLE VI
AMENDMENTS AND EFFECTIVITY

Section 1. This MOA shall be effective upon the date of the last party to sign this MOA below and shall remain in effect for a period of three (3) years from that date unless earlier terminated. The parties indicate agreement with this MOA by their signatures below.

The MOA may be renewed at the end of this period by mutual written agreement by both parties. The provisions of this MOA may only be amended or waived by mutual written agreement by both Parties.

The individuals signing this MOA on behalf of their respective entities represent and warrant (without personal liability thereof) that upon the signature of each, this MOA shall have been duly executed by the entity each represents.

Section 2. This MOA may be terminated by mutual agreement of the parties upon serving notice to the other party within sixty (60) days and shall automatically terminate upon completion of all responsibilities as stated herein, unless otherwise amended.

COMMISSION ON HUMAN OF RIGHTS
REGION X

ATTY. RICHARD P. PALPAL-LATOC
Chairperson

CITY GOVERNMENT OF
CAGAYAN de ORO

ROLANDO "KLAREX" A. UY
City Mayor

SIGNED IN THE PRESENCE OF:

ATTY. JEANNE IVY ABRINA
Regional Director

SUZETTE MAGTAJAS-DABA
City Councilor;
Chairman of the Committee on Education

JESTONI P. BABIA
President,
City College of Cagayan de Oro

REPUBLIC OF THE PHILIPPINES)
Cagayan de Oro City) S.S

A C K N O W L E D G M E N T

BEFORE ME a Notary Public in and for Cagayan de Oro City, Philippines, personally appeared the following, who are identified by me through competent evidence of identity:

NAME	Competent Evidence of Identification Type/Number/ Date and Place of Issue
ROLANDO "KLAREX" A. UY	SSS No. 03-4644815-1

known to me and to me known to be the same person who executed the foregoing instrument who acknowledged to me that his signature on the instrument was voluntarily affixed by him for the purposes stated therein, and the same is their free and voluntary act and deed, as well as the free and voluntary act and deed of the entities herein represented.

This instrument consisting of _____ (__) pages, including this page, is signed on each and every page thereof by the Parties and their instrumental witnesses and sealed with my notarial seal.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my notarial seal this 15 JAN 2025 in Cagayan de Oro City, Philippines.

RACHIENE C. AGUHOB
NOTARY PUBLIC FOR CDO/MIS. OR.
City Legal Office, City Hall, CDOC
NC-2025-02 until 31 Dec 2026
Attorney's Roll No. 65269
PTR O.R. No. 6080352 - 11/13/24 for 2025 CDOC
IBP O.R. No. 473552 - 10/29/24 for 2025 MIS. OR.
MCLE Compliance VII No. 0000760
MCLECompliance VIII No. 0000563
TIN 401-451-747

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